

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALLISON COBLEY,

Petitioner

VS.

OWEN FRANCIS FOLEY JENSEN,

Respondent

) Case Number: FDV-26-819162

) Hearing Date: September 1, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REVIEW HEARING FROM AGREEMENT REACHED 07/22/26

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Allison Cobley (Mother) and Respondent Owen Jensen (Father) have two minor children together, Apollo (DOB 4/15/2020, age 6) and Orion (DOB 3/4/2023, age 3). On 5/14/2026, Mother filed a request for a Domestic Violence Restraining Order (DVRO) against Father, and a Temporary Restraining Order (TRO) issued that same day protecting Mother and the children.
- 2) On 6/3/2026, the parties attended orientation and mediation, and the Court issued interim custody orders awarding Father daytime visits with the children including teaching time at Orion's co-op preschool on alternating weeks.
- 3) On 7/22/2026, the parties reached the following agreement: (1) Mother shall withdraw her DVRO request; (2) the parties share joint legal custody of the children; (3) Father shall enroll in an anger management course or therapy forthwith; (4) the parties enroll in coparenting counseling forthwith; (5) the parties shall continue to alternate preschool teaching time; (6) commencing 7/22/2026, Father shall have overnight visits from Friday at 3pm to Saturday at 7pm so long as he

1 is enrolled in anger management and coparenting counseling; (7) commencing 8/5/20226, Father
2 shall have Thursday after swimming to Sunday at 2pm provided he has participated in anger
3 management and is enrolled in coparenting counseling; (8) each party shall have one phone call
4 per day with the children when they are in the other party's care; and (9) Father may return the
5 children at 4pm on 8/16/2026, and both parties shall be permitted to attend the children's first day
6 of school. The Court ordered the parties to participate in Family Court Services orientation on any
7 Monday before 9/1/2026 and scheduled a review hearing for 9/1/2026.

8 4) Father has filed an update declaration in which he states that his parenting time has been going
9 well. He states he completed a 12-hour anger management course on 8/4/2026 and that the parties
10 agreed not to enroll in coparenting counseling at this time due to cost, but that there have been no
11 significant communication issues. He requests a 2-2-3 parenting time schedule beginning
12 10/5/2026, which he states constitutes a modest (8%) increase in parenting time compared to the
13 current schedule, and would give the children some time to adjust to the new school year before
14 another change in parenting time. He wishes to have alternating weekends so that he can establish
15 a school week routine with the children and because he has been "picking up shifts that include
16 weekends," which requires him to leave the children briefly in his mother's care. He also requests
17 a vacation/holiday schedule that would allow the parties to take the children on vacation for
18 longer than their custodial weekend. In addition, he asks that his Thursdays start after school, or
19 at noon when school is not in session.

20 5) Mother has filed an update declaration in which she states that another change in parenting time is
21 not in the children's best interests. She states that the children have had the current arrangement
22 for years, including before she moved out of the family home, and that it was originally put in
23 place to accommodate Father's work schedule. She states that a 2-2-3 schedule would also create
24 significant difficulties with her current employment; she points out that she does not have the
25 help Father has from his mother. Mother also states there have been some communication issues,
26 including not receiving responses when she has reached out to Father regarding important matters
27 such as the children's medical insurance. She states she is not opposed to Father having additional
28 time, and states for example, that he can pick up the children on Tuesdays, which will give him
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an additional 3 or 4 hours of parenting time. She states she is also willing to work with a mediator to discuss the holiday and vacation schedules.

B. Findings and Orders

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor children is the United States.
- 2) The Court finds it is in the children's best interest to maintain the current parenting time schedule, which was put into place only several weeks ago. The matter is set for a further review hearing on 11/3/2026 at 9am in Department 404, at which time the Court will reconsider Father's request for a 2-2-3 schedule and address any other parenting time scheduling issues. In their update declarations, the parties have made requests and proposals relating to minor parenting time modifications such as Tuesday and Thursday pick up and holiday and vacation time. The Court finds it would be beneficial for the parties to attend further mediation to discuss these matters. The parties shall call Family Court Services at (415) 238-3623 forthwith to schedule further mediation, to take place on or before 10/15/2026. The parties are also encouraged to meet and confer regarding these issues before and after mediation. At least 10 days before the 11/3/2026 review hearing, the parties shall file and serve update declarations informing the Court how things are going and what their custody and parenting time requests are going forward.
- 3) Father's attorney shall prepare the Findings and Order After Hearing.
- 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).